

As at least one basis of the UCL cause of action has survived, the cause of action as a whole survives demurrer and the other bases need not be examined. Accordingly, Defendant's demurrer to the FAC is overruled.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

## Tentative Ruling

Issued By: SMC on 7/29/26.  
(Judge's initials) (Date)

(36)

**Tentative Ruling**

Re: ***Fraga v. Arenas-Fierro, et al.***  
Superior Court Case No. 25CECG00527

Hearing Date: July 30, 2026 (Dept. 403)

Motion: Application for Default Judgment

**Tentative Ruling:**

To deny the application for default judgment, without prejudice. (Code Civ. Proc., § 762.010.)

**Explanation:**

*Adverse Claimants Not Named*

The plaintiff must name as defendants “the persons having adverse claims to the title of the plaintiff against which a determination is sought.” (Code Civ. Proc., § 762.010.)

If a person required to be named as a defendant is dead, or is believed by the plaintiff to be dead, and the plaintiff knows of no personal representative: (1) The plaintiff shall state these facts in an affidavit filed with the complaint. (2) Where it is stated in the affidavit [sic] that such person is dead, the plaintiff may join as defendants “the testate and intestate successors of \_\_\_\_\_ (naming the deceased person), deceased, and all persons claiming by, through, or under such decedent,” naming them in that manner. (3) **Where it is stated in the affidavit that such person is believed to be dead, the plaintiff may join the person as a defendant, and may also join “the testate and intestate successors of \_\_\_\_\_ (naming the person) believed to be deceased, and all persons claiming by, through, or under such person,” naming them in that manner.**

(Code Civ. Proc., § 762.030, subd. (b), emphasis added.)

On January 30, 2025, plaintiff filed the complaint naming Alicia Arenas as one of many defendants in this case. It is alleged that Alicia Arenas is one of the title holders of the subject property in this quiet title action. (First Amended Compl., ¶ 12.) On August 18, 2025, plaintiff filed an amended complaint that omitted Alicia Arenas, and instead joined the testate and intestate successors of Alicia Arenas deceased, and all persons claiming by, through, or under such decedent. An amended pleading making substantive changes supersedes the original. (*State Comp. Ins. Fund v. Sup.Ct. (Onvoi Business Solutions, Inc.)* (2010) 184 Cal.App.4th 1124, 1130-1131.) Therefore, a previously named defendant, not named in the new complaint is, effectively dismissed. (*Kuperman v. Great Republic Life Ins. Co.* (1987) 195 Cal.App.3d 943, 947 [the filing of plaintiffs' second

amended complaint which omitted a defendant as a party effected a dismissal of that party from the action].)

Plaintiff asserts that after the original complaint was filed, the process server was informed that Alicia Arenas was deceased while attempting service of the summons. (Affidavit, ¶¶ 7-8.) However, plaintiff indicates that he cannot locate any evidence suggesting the passing of Alicia Arenas and that “[i]t would not surprise [him] to later learn that Alicia Arenas is in fact still alive.” (Affidavit, ¶¶ 9-11.) Since it is unclear whether Alicia Arenas is deceased, plaintiff has not sufficiently named all adverse claimants to this action.

Additionally, Adrian Lopez appears to be a party to the lease agreement and purchase option agreement that are the subject of this action. However, plaintiff provides no explanation for why she is not a party to this action.

#### *Breach of Contract Not Sufficiently Supported*

“A cause of action for damages for breach of contract is comprised of the following elements: (1) the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to plaintiff. [Citation.]” (*Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1388.)

Here, it is alleged that plaintiff exercised an option to purchase the subject property from defendants. The purchase price and terms of the sale may be summarized as follows: plaintiff was to provide installment payments totaling \$600,000 pursuant to a specified payment schedule set to end on September 1, 2027. Thus far, plaintiff indicates that he has paid \$306,000 towards the purchase price.

Before plaintiff could fully perform his obligations toward the agreement, the property became subject to a public sale pursuant to an encumbrance previously unknown to plaintiff. Plaintiff attempted to immediately pay the full amount of the remaining balance owed towards the purchase price of the subject property through escrow, so that defendants could repay the third party lender. However, defendants refused to accept the funds unless plaintiff paid the amount outside of escrow. Plaintiff ultimately directly paid the third party lender the sum of \$287,339.83, to prevent the public sale. The existence of a contract, defendant's breach, and plaintiff's resulting damages are undoubtedly pled.

The questions at issue are whether plaintiff has pled sufficient performance or an excuse for nonperformance, and whether the court has the power to deem plaintiff's performance as fulfilled so as to quiet title. Plaintiff is instructed to include briefing on these particular issues in any future application for default judgment.

#### *Monetary Relief Sought Exceeds that Demanded in Complaint*

The monetary judgment sought exceeds relief demanded in complaint. “In all default judgments the demand sets a ceiling on recovery.” (*Greenup v. Rodman* (1986) 42 Cal.3d 822, 824 [including default judgments entered as discovery sanction]; *Reedy v.*

*Bussell* (2007) 148 Cal.App.4th 1272, 1294 [including default judgment entered as terminating sanction].) Relief that is not demanded in the complaint cannot be granted by default judgment, even if that relief otherwise would have been proper. (Code Civ. Proc., § 580, subd. (a); *Airs Aromatics, LLC v. CBL Data Recovery Technologies, Inc.* (2018) 23 Cal.App.5th 1013, 1018 [default judgment for sum in excess of that demanded in complaint is void].)

Here, the operative complaint fails to pray for any particular monetary amount in damages. Therefore, the monetary compensation sought in the proposed judgment cannot be granted.

#### *Errors in Proposed Judgment*

For reasons unexplained, defendant Rachel Arenas is not included in the proposed judgment. Also, while the proposed judgment includes an order appointing an elisor to execute any sign documents for the purchase and sale of the subject property, it does not contain any language quieting title and/or effectuating any purchase and sale of property. In fact, the proposed judgment fails to even describe the property as anything other than the "subject property."

#### *Attorney Fees and Costs Not Supported*

Despite conceding that the contract does not include a clause providing for attorney fees and costs to plaintiff, he seeks \$2,009.34 in attorney fees and \$3,773.40 in costs. Plaintiff does not otherwise provide any authority that would allow for an award of fees and costs. Instead, plaintiff argues that the contract lacks mutuality in that it includes a clause awarding fees and costs to defendants only, and therefore, the contract should be construed to apply this provision to both sides of the contract. Plaintiff does not provide any authority to suggest that this is the proper interpretation of a contractual clause lacking mutuality, as opposed to, for example, simply severing the clause from the contract. Without more, the court does not intend to grant the request for attorney fees and costs.

Lastly, plaintiff should file the required "Request for Court Judgment" form (Judicial Council Form CIV-100) in any subsequent request for default judgment. This is a dual-purpose form, used for requesting both entry of default and court judgment. While plaintiff used this form when requesting default, this dual-purpose form must be used again when requesting judgment.

Accordingly, the application for default judgment is denied without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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